

the trustee, the terms of it must be regulated by the whole answer as it stands, and not be taken from one part of the

*v. Woods*, 4 Watts & S. 192; *Okison v. Patterson*, 1 Watts & S. 395. See, also, *Morrison v. Beirer*, 2 Watts & S. 81. The signature of the person declaring a trust need not be by actual subscription of his name; it is enough if his initials are inserted in the instrument, if its terms and intent are clear, and the party acknowledges his writing. *Smith v. Howell*, 11 N. J. Eq. 349. The deed must show a *cestui que trust* and an interest in, or some right or profit growing out of, the conveyed property. *Eldridge v. See Yup Co.* 17 Cal. 44. A trust may be declared by bill in equity. *Martin v. Tenison*, 26 Ala. 738; *Baylies v. Payson*, 5 Allen, 473; *Price v. Minot*, 107 Mass. 62. See, also, *Freeholders v. Henry*, 41 N. J. Eq. 388; *Page v. Summers*, 70 Cal. 121; *Hobson v. Whitlow*, 80 Va. 784; *Cooper v. Cooper*, 36 N. J. Eq. 121; *Paxton v. Stuart*, 80 Va. 873; *South-Side Co. v. Rhodes*, 33 Kan. 229; *Phelps v. Phelps*, 143 Mass. 570; *Westlake v. Wheat*, 43 Hun (N. Y.) 77; *Chamberlain v. Taylor*, 105 N. Y. 185; *Weeks v. Cornwell*, 104 N. Y. 325; *Lawrence v. Cooke*, 104 N. Y. 632; *Picard v. Central Bank, Sall.* (N. B.) 472; *Att'y Gen. v. Grasett*, 6 Chy. 485; 8 Chy. (Ont.) 130; *Smith v. Stuart*, 12 Chy. (Ont.) 246; *Oxford v. Oxford*, 6 O. R. 6; *Whiteside v. Miller*, 14 Chy. 393; *Charteris v. Charteris*, 100 R. 738; *Kerr v. Read*, 23 Chy. 525; *Dougall v. Dougall*, 26 Chy. 401.

*Trust deeds.*— Unless there is some reference to, or description of, property conveyed, either in the body of the deed or in the schedules, so that it can be ascertained and identified, the title will not ordinarily pass; the absence of schedules, unless satisfactorily explained, is a suspicious circumstance. *Linn v. Wright*, 18 Tex. 317; 70 Am. Dec. 282. In a trust deed equity will limit its relief to the contract made and cause a sale only to enforce the trust. *Koch v. Briggs*, 14 Cal. 256; 73 Am. Dec. 651. That a party remains in possession after sale cannot affect the validity of the deed, as it is a matter subsequent. *Hempstead v. Johnston*, 18 Ark. 123; 65 Am. Dec. 458. There is a distinction between an unconditional deed of trust and a trust like a mortgage. *Hoffman v. Mackall*, 5 Ohio St. 124; 64 Am. Dec. 637. A trust deed, however, is but a species of mortgage in many respects. *Wolfe v. Dowell*, 13 Swedes & M. 103; 51 Am. Dec. 147; *Leavitt v. Palmer*, 3 N. Y. 19; 51 Am. Dec. 333; *Brannock v. Brannock*, 10 Ind. Law. 428; 51 Am. Dec. 398. Grantee is not affected by a separate declaration of trust not referred to in the deed or known to the grantee. *Rogers v. Rogers*, 53 Wis. 36; 40 Am. Rep. 756. There must be a grantee willing to accept it. *Jackson v. Bodle*, 20 Johns. 184. In deeds of personalty "heirs" means personal representatives. *Sweet v. Dutton*, 109 Mass. 589; 12 Am. Rep. 744. Where a trust deed gave power to trustee "or his legal representatives" to sell and convey, the power could not be exercised by his administrator, but only by his successor in the trust. *Warnecke v. Lembca*, 71 Ill. 91; 22 Am. Rep. 85. It may include future advances. *Summers & Brannin v. Roos & Co.* 42 Miss. 749; 2 Am. Rep. 653. A voluntary deed purporting to be for the beneficial use of the grantee, and made deliberately without mistake or contrivance, is binding. *Jackson v. Cleveland*, 15 Mich. 94; 90 Am. Dec. 266. If a trust deed recites indebtedness, the presumption is that it remains unpaid. *Graham v. Anderson*, 42 Ill. 514; *Chapin v. Billings*, 91 Ill. 543; *Frederick's App.* 52 Pa. St. 338; 91 Am. Dec. 159. A deed may be reformed which fails to have the proper trusts declared in it. *Walden v. Skinner*, 101 U. S. 577. Recitals in trustee's deed not *prima facie* evidence of their truth. *Vail v. Jacobs*, 62